

Court No. - 50

Case :- WRIT - C No. - 9334 of 2020

Petitioner :- Irfan Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Zulfikar Ali,Rizwan Ahmad(Qureshi)

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Misra,J.

Hon'ble Pradeep Kumar Srivastava,J.

Case called out. No one is present on behalf of the petitioner. Sri Shrawan Kumar Tripathi is present for the respondents 2 and 3; and the learned Standing Counsel is present for the respondents 1 and 4.

Put up, as fresh, before appropriate Bench on 07th July, 2020.

When the matter is listed next, the name of Sri Shrawan Kumar Tripathi will be shown from the respondent's side.

Order Date :- 11.6.2020

AKShukla/-

Court No. - 5

Case :- WRIT - C No. - 9334 of 2020

Petitioner :- Irfan Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Zulfikar Ali,Rizwan Ahmad(Qureshi)

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra,Shrawan Kumar Tripathi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Rohit Ranjan Agarwal,J.

A request has been made on behalf of learned counsel for the petitioner to pass over the case.

As prayed, put up this matter, as fresh case, before the appropriate Bench on **14.07.2020**.

Order Date :- 7.7.2020

Shekhar

Court No. - 34

Case :- WRIT - C No. - 9334 of 2020

Petitioner :- Irfan Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Zulfikar Ali,Rizwan Ahmad(Qureshi)

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra,Shrawan Kumar Tripathi

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vivek Varma,J.

The petitioner herein seeks to challenge the recovery certificate dated 18.01.2020 on the premise that the premises, with regard to which electricity charges are being recovered, came into being in the year 2014 as the construction was completed in the said year itself and the electricity connection for the first time was granted in the name of the petitioner on 15.01.2015. Submission is that the petitioner cannot be asked to make payment of electricity charges for the period prior to 15.01.2015.

All these submissions are based on an application moved by the petitioner to the Tehsildar and the Executive Engineer, Vidyut Vitaran Khand, Rural EDSD Kanth, District Moradabad.

Sri S.K. Tripathi, learned counsel appearing for respondent nos. 2 and 3, states that the petitioner has an effective remedy of approaching the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005. The said forum possesses the power to grant interim protection to the petitioner.

In view of the statutory remedy available to the petitioner and for the fact that the dispute raised by the petitioner requires adjudication of question of fact, we do not find it a fit case to entertain the writ petition. The writ petition is, accordingly, dismissed with liberty to the petitioner to approach the Consumer Grievance Redressal Forum through proper mode.

Order Date :- 29.7.2020/SKT/-